

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF'S AMENDED MOTION FOR WRIT OF POSSESSION

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Carlson".) Now before the Court is Plaintiff's motion for writ of possession.

Plaintiff filed his complaint against Carlson on May 19, 2025 and a first amended complaint on July 3, 2025. On July 11, 2025, upon Plaintiff's motion, all causes of action against Carlson were dismissed with prejudice.

At the case management conference on September 24, 2025, Plaintiff was directed to file proof of service of the FAC.

On November 21, 2025, Plaintiff filed a self-titled "Motion to Reinstate Steve Carlson as Defendant". The Court denied the motion, without prejudice, due to Plaintiff's failure to comply with Local Rule 3.3.7.

Plaintiff never refiled any type of motion seeking to reinstate Carlson as a defendant. Additionally, there is no evidence that Plaintiff served the FAC and summons on Carlson. Therefore, Carlson is not currently a party to this action and therefore no relief can be sought against him.

Accordingly, the motion for writ of possession is not properly before the Court and is therefore **DENIED, WITH PREJUDICE.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

FRAGOZA v TREVINO

25CV48144

CROSS-DEFENDANT'S DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

This matter involves a real property dispute between Cruz Fragoza ("Fragoza") and Stevino Real Estate Investment, LLC ("LLC"), Steven C. Trevino ("Trevino"), Angela M. Barry ("Barry") and William Carter ("Carter") (collectively "Cross-Complainants.")

Now before the Court is a demurrer filed by Fragoza as to the fifth cause of action in the First Amended Cross-Complaint ("FACC") for intentional infliction of emotional distress.

The Court grants Fragoza's request for judicial notice ("RJN"). Cross-Complainants have not filed any oppositions to the RJN or the demurrer.

I. Facts

The facts are compiled from the Cross-Complaint and the judicially noticed documents.

LLC is the record owner of real property known as 2920 Heinemann Drive, Valley Springs, CA 95252, Assessor's Parcel Number 072-019-022 ("APN 2.") (FACC ¶ 3.) Trevino is a member of the LLC. (*Id.* ¶ 5.) Barry and Carter have been tenants since 2010 and 2017 respectively. (*Id.* ¶ 6.)

Next to APN 2 is an unimproved lot with a septic system, commonly known as 2912 Heinemann Dr., Valley Springs, CA, APN 072-019-021 ("APN 1.") (FACC ¶ 3.) APN 1 is owned by Cruz (*Id.* ¶ 7.) It is alleged that Cruz lost ownership of APN 2 through a foreclosure and trustee's sale in 2007-2008. (*Ibid.*) Cross-Complainants allege that the sewer lines and septic system on APN 1 serves the home on APN 2. (*Id.* ¶ 9.)